

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

Plaintiffs

CRISTINA BERTONCELLI,

Plaintiff

-against-

THE CITY OF NEW YORK, OFFICER DENNIS CASTRO (Badge #334),
OFFICER FORTINO (Badge #23156), OFFICER VARGAS (Badge #9160),
OFFICER ANDERSON (Badge #11036) AND OFFICER DURAN

Defendant

The basis of venue is

Residence

SUMMONS WITH NOTICE

INDEX NO.: _____

Date of Index No. JUNE 9, 2020

To the Person(s) Name as Defendant(s) above:

PLEASE TAKE NOTICE THAT YOU ARE HEREBY SUMMONED to appear in this action be
serving a notice of appearance on the plaintiff at the address set forth below, and to do so
within 20 days after the service of this Summons (not counting the day of service itself), or
within the State of New York.

YOU ARE HEREBY NOTIFIED THAT should you fail to answer to appear, a judgement will
be entered against you be default for the relief demanded below.

Dated: June 9, 2020
Kingston, New York



Mitchell H. Spinac, Esq.

Law Office of Mitchell H. Spinac
PO Box 3748
Kingston, New York 12402

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X

CRISTINA BERTONCELLI,

Plaintiff,

Index No.:

- against -

THE CITY OF NEW YORK, OFFICER DENNIS CASTRO (Badge #334),

OFFICER FORTINO (Badge #23156), OFFICER VARGAS (Badge #9160),

OFFICER ANDERSON (Badge #11036) AND OFFICER DURAN

VERIFIED COMPLAINT

Defendants.

-----X

The Plaintiff, Cristina Bertongcelli, as and for their complaint against the defendants, The City of New York, Officer Dennis Castro, Officer Fortino, Officer Vargas, Officer Anderson, and Officer Duran, all officers in New York City Police Precinct 44, hereinafter referred to as the officers hereby alleges the following:

1. That Plaintiff Cristina Bertongcelli, at all relevant times herein, was and still is a resident of the County of Bronx, State of New York.
2. That, Defendant The City of New York and the officers, upon information and belief, at the time of the events which for the basis of this action, were residents of the County of Bronx, State of New York.

AS AND FOR THE FIRST CAUSE OF ACTION OF UNLAWFUL
IMPRISONMENT, ON BEHALF OF THE PLAINTIFF

CRISTINA BERTONCELLI AGAINST

DEFENDANTS THE CITY OF NEW YORK, OFFICER DENNIS CASTRO
(Badge #334), OFFICER FORTINO (Badge #23156), OFFICER VARGAS (Badge
#9160), OFFICER ANDERSON (Badge #11036) AND OFFICER DURAN

3. That on March 11, 2019, at approximately 12:00am Plaintiff Cristina Bertongcelli was lawfully on the premises known as "1095 University Avenue Apt 10G" the Plaintiffs apartment.
4. That on March 11, 2019, Defendants Officer Dennis Castro, Officer Fortino, Officer Vargas, Officer Anderson, were banging on the plaintiffs' door.

5. The plaintiff opened the door. The defendants asked the plaintiff to leave her apartment.
6. As the plaintiff indicated she was leaving in the morning when the movers arrived and that she had documentation allowing her to stay until that time.
7. The Officers stayed in the apartment for approximately 1 hour until their supervisor Officer Duran arrived at the apartment.
8. The plaintiff turned to show Officer Duran the documentation when the Officer Duran directed Officer Castro to arrest the Plaintiff.
9. That, at approximately 1:00am on March 11, 2019, Defendants The City of New York and the officers intentionally confined Plaintiff Cristina Bertoncelli.
10. The plaintiff was not read her Miranda rights. The officers did not allow her to put proper attire or shoes before leaving the apartment.
11. Plaintiff indicated to the Officers the handcuffs were too tight on numerous occasions. She also made them aware of her medical conditions.
12. At the precinct her personal belongings were taken and she was not given a voucher for her personal items.
13. The Plaintiff was searched by a female officer. The plaintiff explained to the officer that she was feeling faint.
14. The Plaintiff collapsed during the search. The officer opened the door for the other officers to see and to laugh at the plaintiff.
15. While in custody the Plaintiff was denied water and a restroom for an extended period of time.
16. Eventually Officer Duran brought water to the Plaintiff and forced her to drink the entire container.
17. The plaintiff began vomiting and shaking on the floor and was refused medical attention.
18. The plaintiff was held at the precinct until about 5:20am was released with an appearance ticket for trespassing.
19. The plaintiff appeared in court for the appearance desk ticket which was dismissed.
20. That, Plaintiff Cristina Bertoncelli, was aware of said confinement.
21. That, Plaintiff Cristina Bertoncelli did not consent to said confinement.

22. That the confinement of Plaintiff Cristina Bertoncelli, was not otherwise privileged.
23. That, the said confinement of Plaintiff Cristina Bertoncelli, by the officers was within the scope of said Defendants' employment.
24. That by reason of the unlawful imprisonment, Plaintiff Cristina Bertoncelli has been damaged in the sum of \$1,000,000.00.
25. Defendants The City of New York is vicariously liable to Plaintiff for the unlawful imprisonment.

AS AND FOR THE SECOND CAUSE OF ACTION BATTERY, ON BEHALF OF
THE PLAINTIFF

CRISTINA BERTONCELLI AGAINST

DEFENDANTS THE CITY OF NEW YORK, OFFICER DENNIS CASTRO (Badge #334),
OFFICER FORTINO (Badge #23156), OFFICER VARGAS (Badge #9160), OFFICER
ANDERSON (Badge #11036) AND OFFICER DURAN

26. Plaintiff repeat, reiterate and reallege each and every allegation contained in paragraphs numbers "1" thru "25" above, as if the same were fully set forth at length herein.
27. That Defendant Officers touch plaintiff Cristina Bertoncelli without her consent.
28. Unconsented touching by defendant officers constitutes a battery.
29. By reason of said battery plaintiff has been damaged in the sum of \$1,000,000.00
30. By reason said battery and unlawful touching the plaintiff has sustained psychological and physical injuries and pain and suffering.
31. That by reason of the battery, Plaintiff Cristina Bertoncelli has been damaged in the sum of \$1,000,000.00.
32. That, pursuant to law, a Notice of Claim was duly served upon Defendant The City of New York and more than 30 days have elapsed without said claim having been paid or adjusted.

WHEREFORE, Plaintiff seeks judgment against the Defendants herein as follows:

- a) in the sum of \$1,000,000.00 in favor of Plaintiff CRISTINE BERTONCELLI and against Defendants THE CITY OF NEW YORK, Officer Dennis Castro, Officer Fortino, Officer Vargas, Officer Anderson, and Officer Duran
- b) on the first cause of action; and
- c) in the sum of \$1,000,000.00 in favor of Plaintiff CRISTINE BERTONCELLI and against Defendants The City of New York, Officer Dennis Castro, Officer Fortino, Officer Vargas, Officer Anderson, and Officer Duran for compensatory damages and for \$1,000,000.00 for punitive damages the first cause of action; and
- d) in the sum of \$1,000,000.00 in favor of Plaintiff CRISTINA BERTONCELLI and against Defendant THE CITY OF NEW YORK Officer Dennis Castro, Officer Fortino, Officer Vargas, Officer Anderson, and Officer Duran with an award of counsel fees pursuant to 42 U.S.C. §1988; and
- e) such other and further relief, as to the Court may seem just and proper.

Dated: June 9, 2020
Kingston, NY

Yours, etc.,

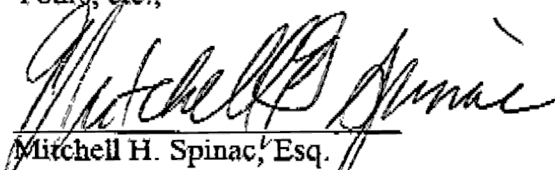
/s/ Mitchell Spinac
Mitchell H. Spinac, Esq.
Attorney for the Plaintiff
Po Box 3748
Kingston, New York 12402
(845) 331-5777

WHEREFORE, Plaintiff seeks judgment against the Defendants herein as follows:

- a) in the sum of \$1,000,000.00 in favor of Plaintiff CRISTINE BERTONCELLI and against Defendants THE CITY OF NEW YORK, Officer Dennis Castro, Officer Fortino, Officer Vargas, Officer Anderson, and Officer Duran
- b) on the first cause of action; and
- c) in the sum of \$1,000,000.00 in favor of Plaintiff CRISTINE BERTONCELLI and against Defendants The City of New York, Officer Dennis Castro, Officer Fortino, Officer Vargas, Officer Anderson, and Officer Duran for compensatory damages and for \$1,000,000.00 for punitive damages the first cause of action; and
- d) in the sum of \$1,000,000.00 in favor of Plaintiff CRISTINA BERTONCELLI and against Defendant THE CITY OF NEW YORK Officer Dennis Castro, Officer Fortino, Officer Vargas, Officer Anderson, and Officer Duran with an award of counsel fees pursuant to 42 U.S.C. §1988; and
- e) such other and further relief, as to the Court may seem just and proper.

Dated: June 9, 2020
Kingston, NY

Yours, etc.,



Mitchell H. Spinac, Esq.
Attorney for the Plaintiff
Po Box 3748
Kingston, New York 12402
(845) 331-5777

ATTORNEY VERIFICATION

Mitchell H. Spinac, an attorney duly admitted to practice in the Courts of the State of New York, hereby affirms the following to be true under penalty of perjury:

I am the attorney for the plaintiff herein. I have read the annexed complaint, know the contents thereof and the same are true to my knowledge, except those matters therein which are stated to be alleged on information and belief, as and to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon the following:

**PLAINTIFFS' FILE, CONVERSATIONS AND CONSULTATIONS WITH THE
PLAINTIFFS, REVIEW OF POLICE REPORT AND MEDICAL REPORTS AND
RECORDS**

The reason I make this affirmation instead of plaintiff is that they reside in a County other than that in which I maintain my office.

DATED: Kingston, New York

June 9, 2020


MITCHELL H. SPINAC, ESQ.

Index No.

R.J.I. No.

Judge Hon.

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX**

CRISTINA BERTONCELLI,

Plaintiff,

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OFFICER ANDERSON (Badge #11036) AND OFFICER DURAN**

Defendant.

COMPLAINT

MITCHELL H. SPINAC, ESQ.

Attorney for Plaintiff

Office and Post Office Address

325 Wall Street

Post Office Box 3748

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(845) 331-5777
